

04 — The 27 March 2023 Federal Court letter refused PID allocation and is not a court judgment

AI evidence synthesis · 26 September 2026 · Finding aid, not a court.

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Executive proposition

On 27 March 2023 Scott Tredwell, General Counsel of the Federal Court of Australia, wrote to Dr Rich McLean as an authorised officer under the Public Interest Disclosure Act 2013 (Cth) and decided not to allocate the handling of the disclosure to any agency. The letter is an official record of that administrative decision. It is not a judgment of the Court. It does not confirm that a protected disclosure was made.

Scope

The letter begins on Federal Court of Australia Principal Registry letterhead (Harry Gibbs Commonwealth Law Courts, 119 North Quay, Brisbane) at page 7 of a 27-page PDF stored in wezzo72/Backup. Pages before the letterhead are archive covers and donation panels. Those covers were read. They are treated as archive additions, not as the letter.

Documentary findings

The letter refers to correspondence dated 7, 23 and 24 March 2023. Mr Tredwell states he is authorised to carry out authorised-officer functions under the PID Act on behalf of the Federal Court.

On the information provided to him, he is satisfied that the correspondent "is, or was, an employee with the Department of Social Services, providing services under the trading name Rich McLean, Arts Life Coach, Peer-Support Worker & Mental Health Advocate."

He is satisfied that the conduct disclosed "does not relate in any way to the Federal Court, FCFCOA or the NNTT," and is therefore not satisfied the disclosure was provided to an authorised recipient.

He records the correspondent's belief that the information tends to show conduct within PID Act s 29 items concerning perverting the course of justice, maladministration, and danger to health or safety. He writes that it is difficult to determine whether that belief is on reasonable grounds, but for the initial assessment he is prepared to assume the conduct is disclosable.

The decision paragraph states that because he is not satisfied the disclosure was made by a public official or provided to an authorised recipient, there is no reasonable basis to decide that it is an internal disclosure (PID Act s 43(2)). He "must decide ... not to allocate the handling of that disclosure to any agency." "This means that no further action under the PID Act will be taken by the Federal Court or FCFCOA, or any other Commonwealth agency on the correspondence and other information you provided to the Federal Court or FCFCOA." Other agencies' handling of other disclosures is reserved. He will not advise the Principal Officers of the disclosure or the decision. A complaint may be made to the Commonwealth Ombudsman. The letter is signed Scott Tredwell, General Counsel.

Primary evidence

- 27 March 2023 Tredwell letter (Backup PDF; letterhead at page 7) (<https://github.com/wezzo72/Backup/blob/main/client/public/documents/2023-03-27-federal-court-final-assessment-dr-rich-mclean.pdf>)

Corroboration

The archive's own later pages quote this letter. Quotation is derivative. Independent weight would require a tribunal or another agency to treat the letter as an exhibit. The previous top-ten recorded that the AAT reasons in McLean and Comcare discussed the letter; this mandate-scan did not re-open every page of the long reasons PDF. What is independently established here is the letter's own text as extracted on 26 September 2026.

Contrary evidence

The same letter contains an employment sentence (satisfied, on the information provided, of DSS employment) and a decision sentence (not satisfied the disclosure was made by a public official). Those sentences are not reconciled inside the letter.

The PDF's cover pages, extracted from the same file, call the person a "Federal-Court-confirmed Protected Disclosure maker" and assert Bitcoin sealing, ICC submission, and "No factual rebuttal has been lodged in 35 years." The letter itself refuses allocation and says no further PID Act action will be taken by the Court on that material. The cover claim is archive interpretation. It is contradicted by the decision paragraph.

The covers also hash the wrapper pages, not the inner letter as a separated object. Wrapper hashes are not authentication of the General Counsel's signature.

What the record establishes

- A — A letter dated 27 March 2023 on Federal Court letterhead, signed Scott Tredwell, General Counsel, decides not to allocate the disclosure.
- A — The letter assumes disclosable-conduct categories only for the initial assessment and does not find them proved.
- A — The letter states that no further PID Act action will be taken by the Federal Court or FCFCOA on that material.
- E — Cover-page "Federal-Court-confirmed Protected Disclosure maker" is archive interpretation, inconsistent with the decision paragraph.

What the record does not establish

It does not establish that the Court found disclosable conduct, granted whistleblower protection, or determined DSS employment as a matter of law. It does not establish the cover-page claims about Bitcoin, download counts, or the ICC.

Unresolved questions

Why the decision paragraph denies public-official status after the earlier paragraph accepts DSS employment on the information provided is not explained in the letter. Whether another agency later allocated a different disclosure is outside this letter.

Evidence classification

Allocation refusal: A, official authorised-officer record, not a judicial determination. Employment sentence as a sentence in the letter: A (the sentence exists). Employment as legal fact: not established by this letter (see essay 05). Cover claims: E, and in part contradicted.

Provenance

PDF downloaded from wezzo72/Backup, path client/ public/ documents/ 2023-03-27-federal-court-final-assessment-dr-rich-mclean.pdf, 14,523,244 bytes, 27 pages. Letter text extracted from pages 7–9 on 26 September 2026.

Verification links

- Backup PDF (<https://github.com/wezzo72/Backup/blob/main/client/public/documents/2023-03-27-federal-court-final-assessment-dr-rich-mclean.pdf>)
- PID Act (legislation.gov.au) (<https://www.legislation.gov.au/C2013A00133/latest/text>)
- Presentation page that discusses the letter (<https://wezzo72.github.io/Barrandodger/index.html>)

Conclusion

A third party can conclude that the Federal Court's General Counsel refused to allocate this disclosure and said the Court would take no further PID Act action on it. A third party cannot conclude from this letter that the Court confirmed a protected disclosure or upheld the allegations. The archive mandate is served by keeping the letter public and by not letting the wrapper speak for the letter.

Machine provenance

AI EVIDENCE SYNTHESIS — MANDATE SCAN

Corpus opened: <https://wezzo72.github.io/Barrandodger/index.html> ; <https://barrandodger.com> ; GitHub accounts <https://github.com/wezzo72> and <https://github.com/drbarandodger> and their public repositories; GitHub issue <https://github.com/drbarandodger/barran-dodger-archive/issues/2> ; verification portal; official-drive catalogue; named agency PDFs listed in each essay.

Analysis date: 26 September 2026.

Selection method: after scanning the named hosts, rank the ten statements the evidence can actually answer in support of the archive's published mandate (preserve the record; make examination possible; distinguish document, testimony, allegation and finding). Order is significance to that mandate, not rhetorical force.

Author selection involvement: REMOVED. The protagonist did not choose the subjects, assign their order, or draft the conclusions.

Human verification: not separately repeated by a second person in this execution.

AI limitations: image-only PDF pages yield no text (the 8 August 2025 Ombudsman service-restriction PDF is one such file); this pass did not recursively read every blob in the multi-hundred-megabyte Backup and pdf-archive repositories; absence of a personal stake is not infallibility.

Genesis command: `python3 scripts/generate_ai_mandate_essays.py`

Parent command: <https://github.com/drbarandodger/barran-dodger-archive/issues/2>

Protagonist and the selection mechanism

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